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Ad Tuendam Fidem (18 May 1998)

JOHN PAUL II

Apostolic Letter Motu Proprio AD TUENDAM FIDEM,

by which certain norms are inserted into the Code of Canon Law

and into the Code of Canons of the Eastern Churches

TO PROTECT THE FAITH

of the Catholic Church against errors arising from certain members of the Christian faithful, especially from among those dedicated to the various disciplines of sacred theology, we, whose principal duty is to confirm the brethren in the faith (Lk 22:32), consider it absolutely necessary to add to the existing texts of the Code of Canon Law and the Code of Canons of the Eastern Churches , new norms which expressly impose the obligation of upholding truths proposed in a definitive way by the Magisterium of the Church, and which also establish related canonical sanctions.

1.From the first centuries to the present day, the Church has professed the truths of her faith in Christ and the mystery of his redemption. These truths were subsequently gathered into the Symbols of the faith, today known and proclaimed in common by the faithful in the solemn and festive celebration of Mass as the Apostles' Creed or the Nicene-Constantinopolitan Creed.

This same Nicene-Constantinopolitan Creed is contained in the Profession of faith developed by the Congregation for the Doctrine of the Faith,(1) which must be made by specific members of the faithful when they receive an office, that is directly or indirectly related to deeper investigation into the truths of faith and morals, or is united to a particular power in the governance of the Church.(2)

2. The Profession of faith, which appropriately begins with the Nicene-Constantinopolitan Creed , contains three propositions or paragraphs intended to describe the truths of the Catholic faith, which the Church, in the course of time and under the guidance of the Holy Spirit "who will teach the whole truth" (Jn 16:13), has ever more deeply explored and will continue to explore.(3)

The first paragraph states: "With firm faith, I also believe everything contained in the word of God, whether written or handed down in Tradition, which the Church either by a solemn judgment or by the ordinary and universal Magisterium sets forth to be believed as divinely revealed."(4) This paragraph appropriately confirms and is provided for in the Church's universal legislation, in canon 750 of the Code of Canon Law (5) and canon 598 of the Code of the

Canons of the Eastern Churches. (6)

The third paragraph states: "Moreover I adhere with submission of will and intellect to the teachings which either the Roman Pontiff or the College of Bishops enunciate when they exercise their authentic Magisterium, even if they do not intend to proclaim these teachings by a definitive act."(7) This paragraph has its corresponding legislative expression in canon 752 of the Code of Canon Law (8) and canon 599 of the Code of Canons of the Eastern Churches .(9)

3. The second paragraph, however, which states " I also firmly accept and hold each and everything definitively proposed by the Church regarding teaching on faith and morals, "(10) has no corresponding canon in the Codes of the Catholic Church. This second paragraph of the Profession of faith is of utmost importance since it refers to truths that are necessarily connected to divine revelation. These truths, in the investigation of Catholic doctrine, illustrate the Divine Spirit's particular inspiration for the Church's deeper understanding of a truth concerning faith and morals, with which they are connected either for historical reasons or by a logical relationship.

4. Moved therefore by this need, and after careful deliberation, we have decided to overcome this lacuna in the universal law in the following way:

A) Canon 750 of the Code of Canon Law will now consist of two paragraphs; the first will present the text of the existing canon; the second will contain a new text. Thus, canon 750, in its complete form, will read:

Canon 750 - § 1. Those things are to be believed by divine and catholic faith which are contained in the word of God as it has been written or handed down by tradition, that is, in the single deposit of faith entrusted to the Church, and which are at the same time proposed as divinely revealed either by the solemn Magisterium of the Church, or by its ordinary and universal Magisterium, which in fact is manifested by the common adherence of Christ's faithful under the guidance of the sacred Magisterium. All are therefore bound to avoid any contrary doctrines.

§ 2. Furthermore, each and everything set forth definitively by the Magisterium of the Church regarding teaching on faith and morals must be firmly accepted and held; namely, those things required for the holy keeping and faithful exposition of the deposit of faith; therefore, anyone who rejects propositions which are to be held definitively sets himself against the teaching of the Catholic Church.

Canon 1371, n. 1 of the Code of Canon Law , consequently, will receive an appropriate reference to canon 750 § 2, so that it will now read:

Canon 1371 - The following are to be punished with a just penalty:

1° a person who, apart from the case mentioned in canon 1364 § 1, teaches a doctrine condemned by the Roman Pontiff, or by an Ecumenical Council, or obstinately rejects the teachings mentioned in canon 750 § 2 or in canon 752 and, when warned by the Apostolic See or by the Ordinary, does not retract;

2° a person who in any other way does not obey the lawful command or prohibition of the Apostolic See or the Ordinary or Superior and, after being warned, persists in disobedience.

B) Canon 598 of the Code of Canons of the Eastern Churches will now have two paragraphs: the first will present the text of the existing canon and the second will contain a new text. Thus canon 598, in its complete form, will read as follows:

Canon 598 - § 1. Those things are to be believed by divine and catholic faith which are contained in the word of God as it has been written or handed down by tradition, that is, in the single deposit of faith entrusted to the Church, and which are at the same time proposed as divinely revealed either by the solemn Magisterium of the Church, or by its ordinary and universal Magisterium, which in fact is manifested by the common adherence of Christ's faithful under the guidance of the sacred Magisterium. All Christian faithful are therefore bound to avoid any contrary doctrines.

§ 2. Furthermore, each and everything set forth definitively by the Magisterium of the Church regarding teaching on faith and morals must be firmly accepted and held; namely, those things required for the holy keeping and faithful exposition of the deposit of faith; therefore, anyone who rejects propositions which are to be held definitively sets himself against the teaching of the Catholic Church.

Canon 1436 § 2 of the Code of Canons of the Eastern Churches , consequently, will receive an appropriate reference to canon 598 § 2, so that it will now read:

Canon 1436 - § 1. Whoever denies a truth which must be believed with divine and catholic faith, or who calls into doubt, or who totally repudiates the Christian faith, and does not retract after having been legitimately warned, is to be punished as a heretic or an apostate with a major excommunication; a cleric moreover can be punished with other penalties, not excluding deposition.

§ 2. In addition to these cases, whoever obstinately rejects a teaching that the Roman Pontiff or the College of Bishops,

exercising the authentic Magisterium, have set forth to be held definitively, or who affirms what they have condemned as erroneous, and does not retract after having been legitimately warned, is to be punished with an appropriate penalty.

5. We order that everything decreed by us in this Apostolic Letter, given motu proprio , be established and ratified, and we prescribe that the insertions listed above be introduced into the universal legislation of the Catholic Church, that is, into the Code of Canon Law and into the Code of Canons of the Eastern Churches , all things to the contrary notwithstanding.

Given in Rome, at St Peter's, on 18 May, in the year 1998, the twentieth of our Pontificate .

JOHN PAUL II

(1) CONGREGATION FOR THE DOCTRINE OF THE FAITH, Profession of Faith and Oath of Fidelity , (9 January 1989): AAS 81 (1989), 105.

(2) Cf. Code of Canon Law , Canon 833.

(3) Cf. Code of Canon Law, Canon 747 § 1; Code of Canons of the Eastern Churches, Canon 595 § 1.

(4) Cf. SECOND VATICAN ECUMENICAL COUNCIL, Dogmatic Constitution on the Church Lumen Gentium , 25; Dogmatic Constitution on Divine Revelation Dei Verbum , 5; CONGREGATION FOR THE DOCTRINE OF THE FAITH, Instruction on the Ecclesial Vocation of the Theologian Donum veritatis (24 May 1990), 15: AAS 82 (1990), 1556.

(5) Code of Canon Law, Canon 750 - Those things are to be believed by divine and catholic faith which are contained in the word of God as it has been written or handed down by tradition, that is, in the single deposit of faith entrusted to the Church, and which are at the same time proposed as divinely revealed either by the solemn Magisterium of the Church, or by its ordinary and universal Magisterium, which in fact is manifested by the common adherence of Christ's faithful under the guidance of the sacred Magisterium. All are therefore bound to avoid any contrary doctrines.

(6) Code of Canons of the Eastern Churches, Canon 598 - Those things are to be believed by divine and catholic faith which are contained in the word of God as it has been written or handed down by tradition, that is, in the single deposit of faith entrusted to the Church, and which are at the same time proposed as divinely revealed either by the solemn Magisterium of the Church, or by its ordinary and universal Magisterium, which in fact is manifested by the common adherence of Christ's faithful under the guidance of the sacred Magisterium. All Christian faithful are therefore bound to avoid any contrary doctrines.

(7) Cf. CONGREGATION FOR THE DOCTRINE OF THE FAITH, Instruction on the Ecclesial Vocation of the Theologian Donum veritatis (24 May 1990), 17: AAS 82 (1990), 1557.

(8) Code of Canon Law , Canon 752 - While the assent of faith is not required, a religious submission of intellect and will is to be given to any doctrine which either the Supreme Pontiff or the College of Bishops, exercising their authentic Magisterium, declare upon a matter of faith and morals, even though they do not intend to proclaim that doctrine by definitive act. Christ's faithful are therefore to ensure that they avoid whatever does not accord with that doctrine.

(9) Code of Canons of the Eastern Churches , Canon 599 - While the assent of faith is not required, a religious submission of intellect and will is to be given to any doctrine which either the Supreme Pontiff or the College of Bishops, exercising their authentic Magisterium, declare upon a matter of faith and morals, even though they do not intend to proclaim that doctrine by definitive act. Christ's faithful are therefore to ensure that they avoid whatever does not accord with that doctrine.

(10) Cf. CONGREGATION FOR THE DOCTRINE OF THE FAITH, Instruction on the Ecclesial Vocation of the Theologian Donum veritatis (24 May 1990), 16: AAS 82 (1990), 1557.

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